

Message History (3)

On 9/22/2026 3:25:03 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W013470-091826

Body:

RE: PUBLIC RECORDS REQUEST of September 18, 2026, **Reference # W013470-091826**

Dear Brian C,

The City received the following records request on September 18, 2026.

Subject: Public Records Request — NCRIC Data Sharing Partnership audit log, June–November 2023

Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following record from the San Mateo Police Department.

This request seeks existing records only (Gov. Code § 7922.530; Sierra Club v. Superior Court (2013) 57 Cal.4th 157).

As you are aware, the Department's September 17, 2026 correspondence states that "[a]n audit log file spanning June – November 2023 contains six entries of queries by San Mateo Police Department, including the officer's email address, plate searched, and associated case number."

As you are further aware, SMPD's executed Memorandum of Understanding with the Northern California Regional Intelligence Center ("NCRIC"), dated August 2014 and produced in W012376-032026, provides in its general provisions that "[a]n audit log will be maintained for a period of no less than three years to record user access to shared data, including the name and organization of the user accessing via the NCRIC-DSP and the date and time when the data was accessed." That same instrument provides, at § 6 (Information Ownership and Release), that "Member Agencies remain the official custodian of all information contributed to the NCRIC-DSP" and that Public Records Act requests for a Member Agency's data "will be referred to the Member Agency that is the owner of the requested data," which "will be responsible for responding to the request." This request is submitted to SMPD as the Member Agency and official custodian under § 6.

Record requested:

The audit log NCRIC's Memorandum of Understanding with SMPD requires be maintained for no less than three years to record user access to shared data via the NCRIC-DSP — including, without limitation, the audit log file described in the Department's September 17, 2026 correspondence as spanning June through November 2023 — together with any record reflecting the current retention status, location, or disposition of that log, to the extent the log itself is withheld or cannot be located.

Anticipated exemption issues:

Gov. Code § 7923.600 (investigation records). § 7923.600 exempts investigatory files compiled by "a state or local police agency." The requested audit log records access "via the NCRIC-DSP" generally, not solely by

SMPD personnel, and on its own description above already includes at least one non-SMPD organization (NCRIC's own administration of the log). To the extent the log or any withheld portion of it reflects access by federal law enforcement personnel, by personnel of a private entity (including a university), or by an employee or contractor of NCRIC's vendor, those entries do not reflect an investigation conducted by a state or local police agency and are not covered by § 7923.600 on their face. Please identify any entries withheld on this basis by the organization associated with the accessing user, without disclosing the user's identity if the identity itself is separately exempt.

"PRA NCRIC directly" as a response basis. NCRIC MOU § 6, quoted above, requires NCRIC to refer Public Records Act requests for Member-Agency data to the Member Agency, which is responsible for responding. To the extent any portion of this request is declined on the ground that the responsive record is held by NCRIC or should be directed to NCRIC, please identify the provision of the MOU, the statute, or the other authority on which that position relies.

Segregability (§ 7922.525(b)). To the extent any entries are properly withheld, please produce all remaining entries and fields, redacted only as necessary.

If any portion is denied, please:

- 1. provide specific exemption citations per Gov. Code § 7922.540;*
- 2. identify the withheld record type and volume, including the number of entries withheld and the date range they cover;*
- 3. indicate whether the denial rests on a claim that the record is held by NCRIC rather than SMPD, and if so, address the effect of NCRIC MOU § 6 and Gov. Code § 7920.530 on that position; and*
- 4. if the log, or any portion of it, no longer exists or cannot be located, state when and why, and identify any record reflecting its disposition.*

Thank you.

A good faith and diligent search yielded no records responsive to your request.

The City has completed its response to your request and we now consider this record request W013470-091826 closed. If you have any questions, or would like to submit a new request for records, please contact the City.

If you have any questions, please contact me using the below contact information.

Sincerely,

Kelly O'Keefe
Police Technical Services Administrator
Police
(650) 522-7709

On 9/18/2026 2:21:56 AM, San Mateo Public Records Center wrote:



Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 9/18/2026 and given the reference number **W013470-091826** for tracking purposes.

Record(s) Requested: **Subject: Public Records Request — NCRIC Data Sharing Partnership audit log, June–November 2023**

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- 4. if the log, or any portion of it, no longer exists or cannot be located, state when and why, and identify any record reflecting its disposition.**

Thank you.

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you

for using the San Mateo Records Center.

To monitor the progress or update this request please log into the [San Mateo Records Center](#).

On 9/18/2026 2:21:54 AM, Brian C wrote:

Request Created on Public Portal